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this marginQ6. (a) Describe the problems of defining marriage and its universality

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Show with classical Definitions

The 6th edition of Notes & Queries (1951) defined marriage as the union of man & woman and children of whom are legitimate offspring.

However, there are several inconsistencies with this definition. (as put by Edmund Leach (1960)]

1) Union between man & woman : It does not count various marriages like.

- Polygamy
 Polygyny (among muslim tribes)
 Polyandry
 Fraternal: Todas
 Non-Fraternal: Nayers
 Polygynandry (among Khasas)

- Woman-woman marriage among Nairs.

- Ghost marriage among Nairs

2) Legitimacy

- It is given by law which is almost absent in stateless societies.
- For eg: legitimacy to child is given by Bow & Arrow ceremony among Todas.

Kathleen Gough (1958) after studying Nayers of Malabar gave a new definition of marriage.

"Marriage is a relationship between a woman or ~~two~~ and one or more other persons, in which child born to them under circumstances not prohibited by rules of recognition, is accorded full birth status by members of society or social stratum"

The definition has four components:

- 1) Relationship between woman & one or more other person: it includes ~~man~~ polygamy, woman-woman & ghost marriage.

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- 2) Rules of relationship : societal rules of marriage are not prohibited.
- 3) Full Birth status : political, economic & social rights given by society.
- 4) Social strata : to make place for system like varna system of Indian society.

However, this definition also have some exceptions :

- 1) Male - male marriage prevalent among many western countries & which are also socially as well as legally recognisable.
- 2) Live in relationship prevalent nowadays.

3) Cattle marriage among tribes of
Africa

However Edmund Leach (1960) argued that
there is no universal definition of
marriage which can be applicable on
all societies of world.

But the definition given by Kathleen
Gough is most acceptable worldwide.

Q less marks
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Definitions
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